

24NNCV00029 24NNCV00029

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Case Number: 24NNCV00029 Hearing Date: September 18, 2026 Dept: E

Hearing Date: 9/18/2026 – 8:30 a.m.

Case No.: 24NNCV00029

Trial Date: 11/02/2026

Case Name: YELENA INOZEMTSEVA, an individual; v. H&H SPEEDY FREIGHT, INC., A California corporation; CARPRO AUTOBODY INC., a California corporation; DOES 1-20, inclusive

TENTATIVE RULING – MSJ-MSA

RELIEF

REQUESTED;

Defendant's Notice of Motion

requests as follows:

Defendant CARPRO AUTOBODY, INC. (hereinafter referred to as "Carpro" unless otherwise specified) will and hereby does move this Court for an order granting summary judgment in its favor and against Plaintiff Yelena Inozemtseva (hereinafter referred to as "Plaintiff") on the sole remaining cause of action for general negligence alleged against Carpro in the First Amended Complaint ("FAC").

In the alternative, Carpro moves for summary adjudication of the issue of duty, and/or summary adjudication that Carpro did not breach any duty owed to Plaintiff and that Carpro's alleged conduct was not

the proximate or legal cause of Plaintiff's alleged injuries.

ISSUE NO. 1: Carpro is entitled to judgment in its favor on the first cause of action for general negligence because:

(1) Carpro did not owe Plaintiff a duty of care as there existed no special relationship between Plaintiff and Carpro,

(2) Carpro did not breach any duty of care as there existed no special relationship between Plaintiff and Carpro,

(3) Plaintiff does not allege that Carpro's conduct was a substantial factor in causing Plaintiff's injuries,

(4) Plaintiff cannot establish that Carpro owed a duty to protect against the criminal conduct of third parties.

(5) Plaintiff cannot establish that her harm was reasonably foreseeable to Carpro, and

(6) The connection between the alleged conduct of Carpro and the injury was tenuous at best.

(Def. Mot., p. 2.)

Defendant moves pursuant to CCP §§437c(a), (c), (f), and (p).

PROCEDURAL

Moving Party: Defendant, Carpro
Autobody, Inc. (Defendant or Carpro)

Responding Party: Plaintiff,
Yelena Inozemtseva

Moving Papers: Notice/Motion;
Separate Statement; Declaration of Vahe Shakhgeldyan; Request for Judicial
Notice; Proposed Order; Proof of Service

Opposing Papers: Opposition;
Plaintiff's Response to Separate Statement; Declaration of Yelena Inozemtseva;
Proof of Electronic Service; Amended Proof of Electronic Service

Reply Papers: Reply

LEGAL STANDARD – MOTION SUMMARY JUDGMENT

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP, § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).)

Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006)

39 Cal.4th 384, 389.)

“Once

the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP, § 437c(p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

TENTATIVE RULING

Preliminary Background

Plaintiff,
Yelena Inozemtseva, filed the original Complaint on 3/4/2024.

On
6/20/2024, Plaintiff filed a First Amended Complaint (FAC) against Defendants –
(1) H&H Speedy Freight, Inc. and (2) Carpro Autobody, Inc.

Plaintiff
alleges that while taking a walk, two individuals in their twenties jumped out
of a Vehicle and robbed Plaintiff at gun point. (FAC, ¶ 13.)

Plaintiff
alleges that the two robbers were in a Vehicle that was registered to
Defendant, H&H. (FAC, ¶ 18.)

Plaintiff
alleges that Defendant H&H allowed the Vehicle to be used by Defendant,
Carpro, a vehicle body repair shop. (FAC, ¶ 19.)

Plaintiff

further alleges that Defendants H&H and Carpro lent the Vehicle to Defendant Doe 2, without obtaining any identifying information as to the name, address, and/or driver's license number of Doe 2. (FAC, ¶ 20.)

Plaintiff's

FAC brings two causes of action – (1) General Negligence and (2) Negligence Per Se.

On

11/21/2025, this Court heard Carpro's motion for judgment on the pleadings (MJOP).

With

respect to the second cause of action for negligence per se, the Court granted Carpro's motion for judgment on the pleadings and dismissed the claim for negligence per se.

With

respect to the first cause of action for negligence, the Court denied Carpro's MJOP.

On

1/26/2026, the Court ruled on Defendant H&H's demurrer to the FAC and sustained the demurrer targeted at both causes of action and denied leave to amend.

Now,

Moving Defendant (Carpro) moves for summary judgment, or in the alternative, for summary adjudication.

The Court notes that the only remaining cause of action left in this action is the negligence claim alleged against Carpro.

Negligence

"To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused

(4) the plaintiff's damages or injuries." (D.G. v. Orange County Social Services Agency (2025) 108 Cal.App.5th 465, 471 quoting Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.)

While

questions concerning whether a duty has been breached and whether that breach caused a plaintiff's injury may be questions of fact for a jury, the existence of the duty in the first place is a question of law for the court. (Margaret W. v. Kelley R. (2006) 139 Cal.App.4th 141, 150 citing Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 237.)

Defendant, Carpro, argues that Plaintiff cannot establish duty as a matter of law.

Negligence (Third-Party Criminal Conduct)

Defendant argues that there is no duty to protect against the criminal conduct of third parties.

"As a general matter, there is no duty to protect against the criminal conduct of a third party, but an important exception exists when there is a special relationship between the plaintiff and defendant." (D.G. v. Orange County Social Services Agency (2025) 108 Cal.App.5th 465, 471 quoting Barenborg v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 76.) " '[A] typical setting for the recognition of a special relationship is where "the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff's welfare." ' ' " (D.G. v. Orange County Social Services Agency (2025) 108 Cal.App.5th 465, 471 quoting Regents of University of California v. Superior Court (2018) 4 Cal.5th 607, 621.)

Here, to the extent that Plaintiff's action seeks to hold Carpro liable to recover for injuries from the criminal conduct of the third parties, here the unidentified robbers who allegedly robbed Plaintiff and Doe 2 who allegedly was lent the vehicle, Plaintiff cannot recover as a matter of law.

First, as a preliminary matter, Plaintiff's FAC does not attempt to allege/seek to recover under the theory that there is a special relationship between Plaintiff and Defendant.

“A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.” (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 444 quoting Howard v. Omni Hotels Management Corp. (2012) 203 Cal.App.4th 403, 421.)

Further, Plaintiff’s opposition concedes that “the duty at issue is not whether CarPro had a duty to stop a robbery.” (Pl. Oppo., p. 3, ln.5.)

Negligence – Misfeasance/General Negligence Principles

In opposition, Plaintiff argues that it alleges that Carpro exercised possession and control over the subject vehicle and failed to exercise reasonable care before releasing possession of the vehicle by failing to verify the identity and authorization of the person receiving it. (Pl. Oppo., p. 3, Ins. 2-4.)

Plaintiff argues that the duty at issue is whether Carpro exercised ordinary care when transferring possession and control of the vehicle. (Pl. Oppo., p. 3, Ins. 6-7.)

Plaintiff’s FAC alleges that Carpro “owed a duty of due diligence and due care to know the identity of DOE 2 and to make sure that DOE 2 had a valid California vehicle driver’s license.” (FAC, ¶ 23.)

Plaintiff further argues that “Plaintiff alleges affirmative conduct creating or increasing the risk of unauthorized possession, not merely a failure to prevent a criminal act.” (Pl. Oppo., p. 3, Ins. 8-9.)

Here, to the extent that Plaintiff is arguing that Carpro breached their duty of care by releasing possession of the vehicle by failing to verify the identity and authorization of the person receiving it, the Court fails to see how a duty exists as a matter of law.

Where the act complained of is one of misfeasance,

the question of duty is governed by the standards of ordinary care. (Romero v. Superior Court (2001) 89 Cal.App.4th 1068, 1091.)

As a general rule, each person has a duty to use ordinary care and is liable for injuries caused by his failure to exercise reasonable care in the circumstances. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1271 citing Rowland v. Christian (1968) 69 Cal.2d 108, 112.)

Whether a given case falls within an exception to the general rule, or whether a duty of care exists in a given circumstance, is a question of law to be determined by the court on a case-by-case basis. (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272 citing Parsons v. Crown Disposal Co. (1997) 15 Cal.4th 456, 472.)

This determination involves the balancing of various factors [the Rowland factors], including “ ‘[T]he foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.’ ” (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272 quoting Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 675, fn. 5.)

Foreseeability

“The foreseeability of the harm, though not determinative, has become the chief factor in duty analysis.” (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1272 quoting Scott v. Chevron U.S.A. (1992) 5 Cal.App.4th 510, 515.)

In examining foreseeability, the court's task is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed. (D.G. v. Orange County Social Services Agency (2025))

Thus, the relevant question is whether the category of negligent conduct at issue here – releasing possession of a vehicle before verifying the identity and authorization of the person receiving it – is sufficiently likely to result in the kind of harm experienced – here being robbed at gunpoint on the street.

Here, when examining the category of negligent conduct – failing to verify the identity and authorization of a person receiving a vehicle – it is not sufficiently likely/foreseeable that an individual gets robbed at gunpoint on the street.

Additionally, not only does Plaintiff not allege that Defendant knew or should have known that Plaintiff could be robbed, but there is no evidence in the record that would support a reasonable inference that Defendant was aware, or should have been aware, of any facts sufficient to put a reasonable person on notice that Plaintiff would be robbed.

Plaintiff submitted an Investigation Report from the Los Angeles Police Department, attached as Exhibit A to the opposition, which indicates that the repair shop owner of Carpro did not know the identity of, nor verify the identity, of the person Carpro was releasing the vehicle to.

However, even viewing the evidence in the light most favorable to Plaintiff, i.e., that Defendant did not in fact verify the identity of the individual that Carpro released the car to, the kind of harm experienced here – getting robbed by gunpoint on the street – is not sufficiently likely/foreseeable.

Degree of Certainty Plaintiff Suffered Harm

Here, Plaintiff's declaration states that she was robbed by two individuals at gunpoint.

Closeness of the Connection Between Carpro's Conduct and Plaintiff's Injury

Here, there is barely a tenuous connection between Defendant not knowing the identity of the individual Defendant released the car

to and Plaintiff's injury of being robbed.

Moral Blame Attached to Defendant's Conduct

Here, the moral blame attached to Defendant's conduct of not verifying the identity of the individual before releasing the vehicle is not high in light of the fact that there is no evidence that Carpro had any involvement of the robbery and in light of the fact that there is no evidence that Carpro should have known about a potential robbery.

Policy of Preventing Future Harm

Here, the policy of preventing future harm is not well served by imposition of a legal duty in circumstances where here, the risk of harm of getting robbed by people on the street is not reasonably foreseeable from a car repair shop owner/lender of a car failing to get identity of individuals he is lending vehicles to.

Extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved

The extent of the burden to the Defendant and the consequences of imposing a duty here seem untenable and detrimental.

Even when viewing the evidence in the light most favorable to Plaintiff, i.e., assuming Defendant did not verify the identity of the individual before releasing the vehicle and failing to maintain documentation, it seems untenable to hold car repair shop owners/car lenders liable for crimes committed by the people they give/lend cars to.

The scope of crime that an individual could use a car to eventually go commit is nearly unlimited.

For example, if a car repair shop owner/car lender were aware of the identity of the person it was giving possession of a vehicle to, and that person had a history of domestic violence, could the repair shop owner/car lender be liable for giving the car to someone who eventually uses the car to drive oneself to commit domestic violence?

As another example, if a car repair shop owner/car lender were aware of the identity of a person it was giving possession of a vehicle to, and that person had a history of murder, could the repair shop owner/car lender be liable for giving the car to someone who eventually uses the car to drive oneself to commit murder?

As another example, if a car repair shop owner/car lender were aware of the identity of a person it was giving possession of a vehicle to, and that person had a history of child abuse, could the repair shop owner/car lender be liable for giving the car to someone who eventually uses the car to drive oneself to commit child abuse?

Under Plaintiff's theory – that Carpro was negligent for releasing possession of a vehicle when it failed to verify the identity of the person receiving it – car repair shop owners/car lenders could be liable for a nearly unlimited amount of crimes because a car can be used to transport an individual to commit a nearly unlimited amount of crimes.

Everyone who commits a crime has to get to their destination in some manner.

In *Allen v. Toledo* (1980) 109 Cal.App.3d 415, a case in which a father was held liable for wrongful death for negligently entrusting his son with his truck, the cause of action against the father was for negligently entrusting the son with the truck when he knew, or should have known, his son was a reckless driver.

The instant case has nothing to do with Defendant negligently entrusting a third-party with the use of the instant vehicle, nor does Plaintiff allege that Defendant knew, or should have known of some reckless behavior of Defendant.

The negligence that Plaintiff seeks to hold Defendant liable for is failing to identify an individual and failing to make sure the individual had a valid driver's license.

The

resultant injury here – getting robbed by a person off the street, losing belongings, and suffering emotional distress – is not reasonably foreseeable from the conduct of failing to check for a driver's license and failing to identify an individual.

Plaintiff

argues that releasing possession of a vehicle without exercising reasonable care to verify the identity and authorization of the recipient creates a foreseeable risk of unauthorized possession and use. Problematic with Plaintiff's argument is that unauthorized possession and use is not the injury that Plaintiff seeks recovery for. Plaintiff seeks recovery for the damages from being robbed. Mere unauthorized possession and use of a vehicle that is not Plaintiff's, is not an injury to Plaintiff.

Overall

Defendant,

Carpro's, MSJ is GRANTED because Carpro did not owe Plaintiff a duty as a matter of law.

Request for Judicial Notice

Defendant's request for judicial notice is granted.